It is preposterous to cry ‘violation of the rule of law’. The power of pardon is an integral part of the legal process that begins with arrest and investigation and proceeds to trial and sentence. Public policy is as valid a consideration in the grant of pardon as it is in the decision to launch or withdraw a prosecution.

English texts speak of ‘political’ in two different senses: ‘a party political’, which is motivated by expediency or party loyalty. The Supreme Court rightly struck down pardon in a case of this kind on October 2006.[6] But ‘political’ is used in another sense also, which is synonymous with considerations of the State or the public interest.

In Britain, the Attorney General (AG) exercised for long the power to launch prosecutions for certain offences and to withdraw all prosecutions in his sole discretion. He consults ministers, if at all, if he so wishes. The Franks Committee on the Official Secrets Act, 1911, noted that he ‘may consult ministerial colleagues before taking his decision to prosecute. He will do this in cases where he thinks there may be important considerations of public policy or of a political or international character to be taken into account’. Thus, even if there is a clear offence of breach of official secrecy, the AG will not bring a case if these considerations apply.

Two distinguished AGs have expounded the law in terms which bear directly on Afzal’s case. Delivering the Sir George Bean Memorial Lecture in Manchester on 29 October 1978, Samuel Silkin said that the need to enforce the law should sometimes be balanced by political considerations. ‘What if their enforcement will lead inevitably to law-breaking on a scale out of all proportion to that which is penalized or to consequences so unfair or so harmful as heavily to outweigh the harm done by the breach itself?’[7]

One consideration that had to be borne in mind, Silkin said, was the fear that minority groups, believing themselves to be unprotected and under attack, might react. ‘If I make my decision on a party political basis, I deserve all the criticism which I am likely to receive. But if I ignore political considerations in the widest sense of that term, then I am failing in my responsibilities and courting disaster.’

Lord Shawcross’s letter to *The Times* (London) of 29 July 1989, is a locus classicus on the subject. It concerned the proposal to prosecute Nazi war criminals. The AG’s discretion was ‘not to be settled by Parliament’. He repeated Lord Simon’s dictum that there is no greater nonsense talked about the AG’s duties in this context than the suggestion that he should prosecute